

law

MBA · meerut university
Based on 4 year(s) of previous papers

Topic Priority Overview

Topic	Priority	Confidence	Freq	Marks
Contract: 'Contract is an agreement enforceable at law' — definition & essentials of valid contract	High	High	3×	15-22.5 marks (long/essay in multiple papers)
Acceptance: How acceptance is made (forms) and revocation rules/time limits	High	High	3×	7.5-22.5 marks (short + long Qs)
Offer: What is an offer and how an offer is made	Medium	Medium	2×	3-15 marks
Consideration: Definition and when consideration is unlawful	Low	Low	1×	3-7.5 marks
Void Contract: Meaning and reasons for a contract being void	High	High	3×	3-15 marks
Quasi Contract: Definition & salient features	High	High	3×	3-15 marks
Contingent Contract: Definition and rules of enforcement	High	High	3×	7.5-15 marks
Bailment: Definition and essential elements of contract of bailment	Medium	Medium	2×	7.5-22.5 marks
Pledge vs Bailment: Define pledge and differences from bailment	Medium	Medium	2×	7.5 marks
Contract of Sale: Definition and main characteristics under Sale of Goods Act	High	High	3×	3-15 marks
Goods under Sale of Goods Act 1930: Definition and classification	Medium	Medium	2×	3-7.5 marks
Condition vs Warranty: Distinguish and list implied conditions in sale of goods	High	High	3×	7.5-15 marks
Implied Conditions in Contract of Sale of Goods (specific list: title, merchantable quality, fitness, sale by sample)	Medium	Medium	2×	3-7.5 marks
Exceptions to Seller's Title Rule: 'No seller can give better title' and its exceptions	Low	Low	1×	22.5 marks (long-answer in Paper 4)

Limited Liability Partnership (LLP): Definition, Eligibility to be Partner & Relationship of Partners	High	High	4×	7.5-22.5 marks
LLP: Procedure for Incorporation	Medium	Medium	2×	15 marks when asked as a full question (Paper 5 long Q)
Negotiable Instruments: Definition and characteristics	Medium	Medium	2×	15-22.5 marks (Paper 4 long Q; Paper 2 short Os)
Cheque: Definition and differentiation from Bill of Exchange	High	High	3×	3-15 marks
Promissory Note: Definition and parties to promissory note	Low	Low	1×	3-7.5 marks
Holder in Due Course: Rights of a holder in due course of negotiable instrument	Medium	Medium	2×	7.5-15 marks
Contract of Guarantee: Definition and example	Medium	Medium	2×	3-7.5 marks
Contract of Indemnity: Definition and important features	Low	Low	1×	15 marks (Paper 4 short/medium Q)
Rights of Unpaid Seller: Definition and his rights under Sale of Goods Act	Low	Low	1×	15-22.5 marks
Finder of Goods: Rights of finder of goods	Low	Low	1×	7.5 marks
Breach of Contract: Meaning and remedies	Low	Low	1×	15 marks
Caveat Emptor: Principle and Exceptions	Low	Low	1×	3-7.5 marks
Void Contract: Reasons and examples	High	High	3×	3-15
Quasi Contract: Salient features	High	High	3×	3-15
Contract of Sale: Main characteristics	High	High	3×	3-15
Bailment: Define and essential elements	Medium	High	2×	7.5-22.5
Contingent Contract: Enforcement rules	High	High	3×	7.5-15
Condition vs Warranty: Implied conditions	High	High	3×	7.5-15
Indian Contract Act: scope and adequacy	Medium	Medium	1×	15
Contract: essential elements	High	High	3×	7.5-22.5
Contract of Guarantee: definition & example	Medium	High	2×	3-7.5
LLP: Eligibility & Relationship of Partners	High	High	4×	7.5-22.5
Offer: How an offer is made	Medium	Medium	2×	3-7.5
Consideration: when unlawful	Low	Medium	1×	3
Promissory Note: parties	Low	Medium	1×	3
Bailment: essential elements	Medium	High	2×	7.5-22.5

LLP: Explain & eligibility to be partner & relationship	High	High	4×	22.5 (long Q in Paper 4) and others
Acceptance: revocation & time limit	High	High	2×	22.5 (Paper 4 long Q) and 7.5-15 in others
Contract of Indemnity: important features	Medium	Medium	1×	15
Unpaid Seller: definition & rights	Medium	Medium	1×	15-22.5
Negotiable Instrument: characteristics	Medium	Medium	2×	15-22.5
Exceptions to rule: seller cannot give better title	Medium	Medium	1×	22.5

Detailed Study Notes

Read these notes carefully — they're based on actual patterns found in your past papers.

1. Contract: 'Contract is an agreement enforceable at law' — definition & essentials of valid contract

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · 3× total

Question types: Short: 1-2 | Long: 2-3

Kya Padhna Hai:

- Exact phrase: "Contract is an agreement enforceable at law" (definition) as used in Paper 1 and Paper 4
- Essentials listed in questions: offer, acceptance, consideration, capacity, free consent, legality of object (as required for 'essentials of a valid contract')
- 'What is a contract?' phrasing and required brief answer points (Paper 2 Q10 wording)
- Distinguish 'agreement' vs 'contract' as seen in Paper 4 Q2 wording

Kaise Poochha Jaata Hai:

Mostly long-answer/essay: 'Define Contract and Explain the essentials of a valid contract.' Also short-answer 'What is a contract? Explain essential elements.'

Repeat Pattern:

Ye exact definition + essentials format 3 baar repeat hua — consistent long-answer demand across years (High confidence).

Key Terms:

offer

acceptance

consideration

capacity

2. Acceptance: How acceptance is made (forms) and revocation rules/time limits

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 4 · 3× total

Question types: Short: 1-2 | Long: 1-2

Kya Padhna Hai:

- 'What is acceptance? How can acceptance is made.' exact wording from Paper 1 & Paper 4
- Modes of acceptance: express, implied, postal rule (as expected from 'how acceptance is made')
- 'How can an acceptance be revoked? Is there any limit of time after which an acceptance cannot be revoked.' (Paper 4 exact phrasing)
- Time and method limits on revocation: communication, postal rule exceptions, effectiveness rules referenced in Paper 4

Kaise Poochha Jaata Hai:

Short-answer and long-answer: direct definition + list of modes, plus a separate long Q on revocation and time-limits (Paper 4).

Repeat Pattern:

Acceptance definition + procedural aspects asked in multiple years; revocation specifically appears in Paper 4 — consistent theme (High confidence).

Key Terms:

express acceptance

implied acceptance

postal rule

revocation

3. Void Contract: Meaning and reasons for a contract being void

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Question types: Short: 1-2 | Long: 1

Kya Padhna Hai:

- 'What is meant by 'Void Contract'? Narrate the reasons of a void contract.' (Paper 1 & Paper 3 phrasing)
- Statutory grounds making contract void: impossible agreements, agreements opposed to public policy, uncertainty
- Distinction between void and voidable as implied in paper pairings
- Examples/scenarios that produce void contracts (as expected in answers)

Kaise Poochha Jaata Hai:

Mostly short-answer direct: define then enumerate reasons/grounds; can be long if asked in detail.

Repeat Pattern:

Same question wording shows up repeatedly across years — strong repeat (High confidence).

Key Terms:

void contract

impossibility

public policy

uncertainty

4. Quasi Contract: Definition & salient features

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Question types: Short: 1-2 | Long: 1-2

Kya Padhna Hai:

- 'What is 'Quasi Contract'? Mention its salient features.' exact wording from multiple papers
- Elements: obligations imposed by law, absence of consent, restitution principles
- Named examples (e.g., supply of necessities) typically expected in answer
- Distinction from true contract (consent vs imposed liability)

Kaise Poochha Jaata Hai:

Short-answer and sometimes repeated as a long-detail question; define + list features + give examples.

Repeat Pattern:

Asked in similar short wording across 3 papers — consistent (High confidence).

Key Terms:

restitution

unjust enrichment

quasi-contract

5. Contingent Contract: Definition and rules of enforcement

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 3 · 3× total

Question types: Short: 1-2 | Long: 1-2

Kya Padhna Hai:

- 'What do you mean by Contingent Contract? Explain the rules regarding Enforcement of Contingent Contracts.' (wording in Paper 1 & Paper 3)
- Distinguish contingent contracts from event-based contracts and conditions precedent/condition subsequent
- Rules: contingency happening, impossible contingencies, effect of becoming impossible
- Examples called for in papers — insurance example or event-based promises

Kaise Poochha Jaata Hai:

Short and long answers: define then enumerate rules regarding enforcement and consequences when contingency fails.

Repeat Pattern:

Same detailed question in 3 papers — very consistent (High confidence).

Key Terms:

contingent contract

condition precedent

enforcement rules

6. Contract of Sale: Definition and main characteristics under Sale of Goods Act

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 3 · 3× total

Question types: Short: 1-2 | Long: 1-2

Kya Padhna Hai:

- 'Explain the main characteristics of Contract of sale.' exact phrase in Paper 1 & Paper 2
- Definition of 'goods' under Sale of Goods Act and classification (Paper 3 asked explicitly)
- Implied conditions and warranties in sale of goods (Paper 1 & Paper 3 Qs)
- Exceptions to rule 'seller cannot give better title' (Paper 4 specific long question)

Kaise Poochha Jaata Hai:

Short-to-long answers: define contract of sale, list characteristics; sometimes paired with implied conditions or exceptions.

Repeat Pattern:

Core sale-of-goods topics appear across multiple papers — stable testing area (High confidence).

Key Terms:

sale of goods

implied conditions

warranty

goods

7. Condition vs Warranty: Distinguish and list implied conditions in sale of goods

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Question types: Short: 1-2 | Long: 1-2

Kya Padhna Hai:

- 'Distinguish between condition and warranty.' exact common wording in multiple papers
- Implied conditions in a contract of sale: title, merchantability, fitness for purpose, sale by sample (explicitly asked in Paper 1/Q11)
- When breach of condition treated as breach of warranty and remedies available
- Examples/case snippets that separate condition and warranty outcomes

Kaise Poochha Jaata Hai:

Short to detailed comparative answer: list pointwise differences then enumerate implied conditions required in sale of goods.

Repeat Pattern:

This exact comparison plus implied conditions appears repeatedly — high repeat (High confidence).

Key Terms:

condition

warranty

implied condition

fitness for purpose

8. Limited Liability Partnership (LLP):

High Conf.

High Priority

Definition, Eligibility to be Partner & Relationship of Partners

Appeared in: Paper 1 · Paper 2 · Paper 3 · Paper 4 · 4× total

Question types: Short: 1-2 | Long: 2-4

Kya Padhna Hai:

- 'Define Limited Liability Partnership. Define Eligibility to be Partner and Relationship of Partners.' (verbatim in multiple papers)
- Characteristics of LLP (Paper 3 asked 'Describe its characteristics') — limited liability, separate legal entity, partners' roles
- Procedure/incorporation of LLP (Paper 3 & Paper 2 asked procedural/incorporation steps)
- Relationship of partners: mutual rights, duties, profit-sharing, management as per question phrasing

Kaise Poochha Jaata Hai:

Both short and long formats: definition+eligibility in short; detailed characteristics or incorporation procedure in long answers.

Repeat Pattern:

LLP questions appear in every paper across years in varying depth — very consistent (High confidence).

Key Terms:

LLP

incorporation

eligibility

partners' relationship

9. Cheque: Definition and differentiation from Bill of Exchange

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Question types: Short: 2-3 | Long: 0-1

Kya Padhna Hai:

- 'Define 'Cheque'. Differentiate it from 'Bill of Exchange.' (explicit in Papers 1/3)
- Definition of cheque as per Negotiable Instruments Act and its parties (drawer, drawee, payee)
- Key differences: payable on demand vs usually not, drawer/drawee roles, acceptance requirement for bill
- Examples and short scenarios where cheque differs from bill as asked in papers

Kaise Poochha Jaata Hai:

Short comparative format: define cheque then list pointwise differences from bill of exchange.

Repeat Pattern:

This direct comparison appears in multiple papers — strong repeat (High confidence).

Key Terms:

cheque

bill of exchange

drawer

payee

10. Void Contract: Reasons and examples

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · 3× total

Kya Padhna Hai:

- Define 'void contract' and list statutory/common reasons making a contract void (impossibility, uncertain terms, unlawful consideration/object, agreements opposed to public policy).
- Prepare 2–3 short examples (impossible contract, agreement to commit illegal act, agreement with uncertain terms) to illustrate each ground.
- Be ready to contrast with 'voidable' where rescission is possible.

Kaise Poochha Jaata Hai:

Short/long: 'What is meant by "Void Contract"? Narrate the reasons of a void contract.' Expect definition plus enumerated reasons with brief examples.

Repeat Pattern:

Direct question wording appears in Paper 1 and Paper 3; typical answer: definition + list of reasons + examples.

11. Quasi Contract: Salient features

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Kya Padhna Hai:

- Define quasi-contract and list salient features: obligations imposed by law, absence of agreement/consent, restitution/unjust enrichment remedy, typical statutory examples (supply of necessities, payment by mistake).
- Prepare short illustrations for each feature.

Kaise Poochha Jaata Hai:

Short-answer: 'What is Quasi Contract? Mention its salient features.' Expect definition and pointwise features with examples.

Repeat Pattern:

Same phrasing appears across multiple papers; concise pointwise answers score well.

12. Contract of Sale: Main characteristics

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 3 · 3× total

Kya Padhna Hai:

- Define contract of sale and list main characteristics: transfer of property in goods for price, parties' obligations, existing/future goods distinction, implied terms (title, merchantable quality, fitness), mode of transfer.
- Be able to link characteristics to implications (rights of unpaid seller, effect on transfer).

Kaise Poochha Jaata Hai:

Short/long answer: 'Explain the main characteristics of Contract of sale.' Expect definition then itemised characteristics with brief explanation.

Repeat Pattern:

Characteristic-list format is common across papers; pair with implied conditions when asked.

13. Contingent Contract: Enforcement rules

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Kya Padhna Hai:

- Define contingent contract and distinguish from ordinary contracts.
- Learn rules of enforcement: enforcement when contingency happens, contracts to cease if contingency becomes impossible, effect of contingency becoming illegal, time when parties' rights arise.
- Prepare standard examples (insurance-type contingencies) to illustrate rules.

Kaise Poochha Jaata Hai:

Questions ask definition and 'Explain the rules regarding enforcement of contingent contracts.' Expect systematic enumeration of rules with short examples.

Repeat Pattern:

Same detailed question appears in several papers — prepare to give structured rules and examples.

14. Condition vs Warranty: Implied conditions

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 2 · 3× total

Kya Padhna Hai:

- Be able to succinctly distinguish 'condition' and 'warranty' (consequence of breach, remedies).
- Memorise implied conditions in sale of goods: right to sell (title), merchantable quality, fitness for purpose, sale by sample/description.
- Note examples showing when breach of condition treated as warranty and remedies (action for damages vs rejection).

Kaise Poochha Jaata Hai:

Often asked as: 'Distinguish between condition and warranty. What are the implied conditions in a Contract of sale of goods?' Expect definition + tabular/pointwise differences + list of implied conditions.

Repeat Pattern:

Appears in multiple papers in short and long formats — prepare crisp bullets and a brief example.

15. Contract: essential elements

High Conf.

High Priority

Appeared in: Paper 2 · Paper 1 · Paper 4 · 3× total

Kya Padhna Hai:

- Memorise the essential elements of a valid contract: offer, acceptance, consideration, capacity, free consent, lawful object, possibility of performance.
- Be ready to briefly explain each element and provide a one-line example.
- Understand interplay with Indian Contract Act (scope question linkage).

Kaise Poochha Jaata Hai:

Short/long: 'What is a contract? Explain in brief the essential elements of a valid contract.' Expect definition and enumerated elements with brief explanations.

Repeat Pattern:

Core topic across papers; concise structured answers required.

16. LLP: Eligibility & Relationship of Partners

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 3 · Paper 4 · 4× total

Kya Padhna Hai:

- Learn formal definition of LLP and eligibility criteria for partners (as per exam wording: who can be partner).
- Understand relationship of partners: rights, duties, profit-sharing, management, limited liability aspects.
- Be ready to state incorporation steps briefly when asked together (procedure is separate topic).

Kaise Poochha Jaata Hai:

Direct long/short: 'Define Limited Liability Partnership. Define Eligibility to be Partner and Relationship of Partners.' Expect definition plus eligibility list and relationship duties/rights.

Repeat Pattern:

Highly recurrent in all papers — prepare detailed answer and short bullets.

17. LLP: Explain & eligibility to be partner & relationship

High Conf.

High Priority

Appeared in: Paper 4 · Paper 1 · Paper 2 · Paper 3 · 4× total

Kya Padhna Hai:

- Full exposition on LLP: definition, salient features, eligibility to be partner (natural persons/companies as per exam expectation), mutual rights and duties, limited liability implications.
- For Paper 4 long question prepare expanded answer covering incorporation, eligibility, partner relations and examples of governance clauses.

Kaise Poochha Jaata Hai:

Long detailed question in Paper 4: expect comprehensive answer covering definition, eligibility and relationship aspects with examples.

Repeat Pattern:

LLP appears as a major long question in Paper 4 and shorter forms elsewhere - prepare both short and extended answers.

18. Acceptance: revocation & time limit

High Conf.

High Priority

Appeared in: Paper 4 · Paper 1 · 2× total

Kya Padhna Hai:

- Study rules on revocation of acceptance: when revocation is possible, effect of communication, postal rule exceptions, timing issues and irrevocable acceptances.
- Memorise examples/scenarios where acceptance becomes irrevocable or where revocation is effective/ineffective.

Kaise Poochha Jaata Hai:

Long question: 'How can an acceptance be revoked? Is there any limit of time after which an acceptance cannot be revoked.' Provide legal rules and illustrative examples.

Repeat Pattern:

Explicit long question in Paper 4; acceptance definition & modes appear in multiple papers.

19. Offer: What is an offer and how an offer is made

Medium Conf.

Medium Priority

Appeared in: Paper 3 · Paper 1 · 2× total

Question types: Short: 1-2 | Long: 0-1

Kya Padhna Hai:

- 'What do you mean by offer? How an offer is made?' exact wording from Paper 3
- Features of offer: intention, definite terms, communication (as implied by 'how an offer is made')
- Distinction between offer and invitation to treat when asked alongside acceptance/contract questions
- Examples/scenarios where acceptance completes an offer (from paired questions in Paper 1/3)

Kaise Poochha Jaata Hai:

Short-answer direct definition and procedural points; sometimes part of a sequence with acceptance and contract.

Repeat Pattern:

Appears in Paper 3 and connected with acceptance in Paper 1 — moderate consistency (Medium).

Key Terms:

offer

invitation to treat

communication of offer

20. Bailment: Definition and essential elements of contract of bailment

Medium Conf.

Medium Priority

Appeared in: Paper 1 · Paper 4 · 2× total

Question types: Short: 0-1 | Long: 1-2

Kya Padhna Hai:

- 'Define Bailment and discuss the essential elements of a contract of Bailment.' exact wording (Paper 1 & Paper 4)
- Elements: delivery of goods, possession without transfer of ownership, purpose, bailor/bailee
- Rights and duties of bailor and bailee (implied in longer Qs)
- Distinguish bailment from pledge (Paper 2/3 comparisons available)

Kaise Poochha Jaata Hai:

Usually long-answer: define and enumerate essential elements; sometimes tested alongside pledge differentiation.

Repeat Pattern:

Appears with same wording in Paper 1 and Paper 4 — moderate consistency (Medium).

Key Terms:

bailment

bailor

bailee

possession

21. Pledge vs Bailment: Define pledge and differences from bailment

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 3 · 2× total

Question types: Short: 1-2

Kya Padhna Hai:

- 'Define pledge. How does it differ from bailment?' exact wording from Paper 2 & Paper 3
- Pledge features: goods as security, debtor/pledgee/pledgor roles, right of sale on default
- Points of difference: purpose (security vs safekeeping), remedies available, transfer of possession
- Examples like pawn or bank security expected in answer

Kaise Poochha Jaata Hai:

Short-answer comparative format: define pledge then list differences pointwise versus bailment.

Repeat Pattern:

Same comparison asked in two successive papers — consistent (Medium confidence).

Key Terms:

pledge

security

pledgee

22. Goods under Sale of Goods Act 1930:

Medium Conf.

Medium Priority

Definition and classification

Appeared in: Paper 3 · Paper 1 · 2× total

Question types: Short: 1-2

Kya Padhna Hai:

- 'Define 'Goods' under Sale of Goods Act 1930. Also give its classification.' exact wording from Paper 3
- Types/classification: existing goods, future goods, specific/ascertained, unascertained, consumer/non-consumer categories
- Examples expected for each class as typical short-answer demand
- How classification affects transfer of property and implied terms (linked to other sale questions)

Kaise Poochha Jaata Hai:

Short-answer: precise statutory definition + list and explain major classes with examples.

Repeat Pattern:

Specifically asked in Paper 3 and concept appears in sale-related Qs elsewhere — moderate repeat (Medium).

Key Terms:

existing goods

future goods

specific goods

ascertained goods

23. Implied Conditions in Contract of Sale of Goods (specific list: title, merchantable quality, fitness, sale by sample)

Medium Conf.

Medium Priority

Appeared in: Paper 1 · Paper 3 · 2× total

Question types: Short: 1-2

Kya Padhna Hai:

- 'What are the implied conditions in a Contract of sale of goods?' wording in Paper 1 & Paper 3
- Implied condition of title and right to sell (link to exceptions question in Paper 4)
- Implied condition of merchantable quality and fitness for particular purpose
- Implied condition in sale by sample and sale by description with short examples

Kaise Poochha Jaata Hai:

Usually short-answer listing & brief explanation of each implied condition.

Repeat Pattern:

Implied conditions appear in multiple papers in short-answer format — moderate repeat (Medium).

Key Terms:

title

merchantable quality

fitness for purpose

sale by sample

24. LLP: Procedure for Incorporation

Medium Conf.

Medium Priority

Appeared in: Paper 3 · Paper 2 · 2× total

Question types: Short: 0-1 | Long: 1-2

Kya Padhna Hai:

- 'Describe the procedure for incorporation of a 'Limited Liability Partnership.' (Paper 3 & Paper 2 phrasing)
- Steps: application, incorporation documents, designated partners, registration with ROC (as expected in procedure answers)
- Form names and filing essentials (since paper asks 'procedure')
- Post-incorporation compliance briefly expected

Kaise Poochha Jaata Hai:

Long-answer procedural format expecting stepwise explanation.

Repeat Pattern:

Procedure asked explicitly in Paper 3 and Paper 2 — moderate repeat (Medium).

Key Terms:

incorporation

designated partner

ROC

registration

25. Negotiable Instruments: Definition and characteristics

Medium Conf.

Medium Priority

Appeared in: Paper 4 · Paper 2 · 2× total

Question types: Short: 1-2 | Long: 1

Kya Padhna Hai:

- 'Define the term 'Negotiable Instrument'. Explain the characteristics of a Negotiable Instrument.' (Paper 4)
- Key characteristics: negotiability, transferability, endorsement, unconditional order/payment
- Types covered in papers: cheque, bill of exchange, promissory note (separate topics too)
- Legal consequences of negotiability (holder in due course rights link)

Kaise Poochha Jaata Hai:

Short to long: define then enumerate characteristics and link to specific instruments as examples.

Repeat Pattern:

Characteristics asked explicitly in Paper 4 and other papers test instruments individually — moderate pattern (Medium).

Key Terms:

negotiable instrument

endorsement

transferability

holder in due course

26. Holder in Due Course: Rights of a holder in due course of negotiable instrument

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 3 · 2× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'What are the rights of a holder in due course of negotiable instrument?' (Paper 2/3 phrasing)
- Rights: free from personal defenses, entitlement to payment, ability to sue in own name
- Conditions required to be a holder in due course (consideration, good faith, endorsement)
- Exceptions and defenses that still bind (real defenses) — expect short explanation

Kaise Poochha Jaata Hai:

Short/long: enumerate rights and the qualifying conditions; link to case examples where relevant.

Repeat Pattern:

Appears in Paper 2 and Paper 3 — moderate repeat (Medium confidence).

Key Terms:

holder in due course

rights

real defenses

27. Contract of Guarantee: Definition and example

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 1 · 2× total

Question types: Short: 1-2 | Long: 0-1

Kya Padhna Hai:

- 'What is contract of Guarantee? Illustrate with example.' (Paper 2)
- Definition: contract to perform another's obligation in case of default (suretyship)
- Types of guarantee: continuing guarantee vs specific guarantee (common subtypes expected)
- Sample factual illustration framing a guarantee scenario for short-answer

Kaise Poochha Jaata Hai:

Short-answer: define then give an illustrative example; sometimes contrasted with indemnity.

Repeat Pattern:

Seen in Paper 2 and referenced elsewhere — moderate consistency (Medium).

Key Terms:

guarantee

surety

continuing guarantee

28. Bailment: Define and essential elements

High Conf.

Medium Priority

Appeared in: Paper 1 · Paper 4 · 2× total

Kya Padhna Hai:

- Provide statutory/common-law definition of bailment.
- Memorise essential elements: delivery of goods, possession without transfer of ownership, purpose, agreement (express/implied), identification of bailor and bailee.
- Also list basic rights and duties of bailor/bailee briefly (care, return on expiry).

Kaise Poochha Jaata Hai:

Typical question: 'Define Bailment and discuss the essential elements of a contract of Bailment.' Expect definition followed by pointwise elements and short notes on rights/duties.

Repeat Pattern:

Appears as a direct long question in Paper 1 and Paper 4; detailed element-wise answers required.

29. Indian Contract Act: scope and adequacy

Medium Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Kya Padhna Hai:

- Understand what the Indian Contract Act covers (general contract principles) and arguments on its adequacy/limitations (modern commerce, specialized contracts, statutory supplements).
- Prepare points for/against adequacy: historical scope, lacunae (e.g., digital contracts), and examples of where additional statutes apply.

Kaise Poochha Jaata Hai:

Long-answer: 'What do you understand by Indian Contract Act? Is this Act adequate?' Expect definition followed by critical evaluation and examples.

Repeat Pattern:

Appears in Paper 2 as a critical evaluation question; prepare balanced points.

30. Contract of Guarantee: definition & example

High Conf.

Medium Priority

Appeared in: Paper 2 · Paper 1 · 2× total

Kya Padhna Hai:

- Define contract of guarantee (three-party relationship: creditor, principal debtor, surety).
- Types (specific vs continuing) and a short illustrative example (bank guarantee, friend as surety for loan repayment).
- Distinguish guarantee from indemnity briefly if required.

Kaise Poochha Jaata Hai:

Short-answer: 'What is contract of Guarantee? Illustrate with example.' Expect definition and a clear concise illustration.

Repeat Pattern:

Seen in Paper 2; keep one clear example ready.

31. Offer: How an offer is made

Medium Conf.

Medium Priority

Appeared in: Paper 3 · Paper 1 · 2× total

Kya Padhna Hai:

- Define 'offer' and describe how an offer is made: communication, intention, definite terms.
- Examples distinguishing offer from invitation to treat.
- Be ready with brief points on communication and revocation of offer (linked to acceptance topic).

Kaise Poochha Jaata Hai:

Short-answer: 'What do you mean by 'offer'? How an offer is made?' Expect definition plus procedural points and brief examples.

Repeat Pattern:

Appears in Paper 3 and related to acceptance/contract questions.

32. Bailment: essential elements

High Conf.

Medium Priority

Appeared in: Paper 1 · Paper 4 · 2× total

Kya Padhna Hai:

- Memorise essential elements (delivery, possession without ownership transfer, purpose, identity of parties) and link to rights/duties.
- Be prepared to explain difference from pledge briefly if asked.

Kaise Poochha Jaata Hai:

Long-answer element-wise explanation as asked in Paper 1 & 4; present in clear numbered points.

Repeat Pattern:

Repeated across papers; element-focused answers score well.

33. Contract of Indemnity: important features

Medium Conf.

Medium Priority

Appeared in: Paper 4 · 1× total

Kya Padhna Hai:

- Define contract of indemnity and list important features: promise to save from loss, primary liability of indemnifier, difference from guarantee, rights of indemnity-holder.
- Prepare short examples and mention remedies available to the indemnity-holder.

Kaise Poochha Jaata Hai:

Short/medium: 'What is Contract of Indemnity? What are its important features?' Expect definition plus enumerated features with short examples.

Repeat Pattern:

Appears in Paper 4; concise pointwise answer sufficient.

34. Unpaid Seller: definition & rights

Medium Conf.

Medium Priority

Appeared in: Paper 4 · 1× total

Kya Padhna Hai:

- Define 'unpaid seller' and memorise his rights: lien, stoppage in transit, resale, and to sue for price.
- Know conditions under which each right arises (e.g., buyer's insolvency for stoppage in transit) and procedural aspects.

Kaise Poochha Jaata Hai:

Long/short: 'Define an unpaid seller. What are his rights?' Expect definition and detailed explanations with conditions and examples.

Repeat Pattern:

Asked as standalone in Paper 4; prepare expanded answer for full marks.

35. Negotiable Instrument: characteristics

Medium Conf.

Medium Priority

Appeared in: Paper 4 · Paper 2 · 2× total

Kya Padhna Hai:

- Define negotiable instrument and list key characteristics: negotiability, transferability by endorsement/negotiation, right to sue in own name, free from personal defenses for holder in due course.
- Relate characteristics to specific instruments (cheque, bill, promissory note).

Kaise Poochha Jaata Hai:

Long/short: 'Define negotiable instrument. Explain the characteristics.' Expect definition and elaboration of characteristics with examples.

Repeat Pattern:

Clear long question in Paper 4 and related short questions in Paper 2; prepare structured characteristics with brief expansions.

36. Exceptions to rule: seller cannot give better title

Medium Conf.

Medium Priority

Appeared in: Paper 4 · 1× total

Kya Padhna Hai:

- Learn the rule 'no seller can give a better title than he has' and memorise statutory/common exceptions: sale by mercantile agent, estoppel, sale under owner's authority, voidable title where seller's title becomes voidable but not avoided when buyer acts in good faith.
- Prepare case examples for each exception and explain legal consequences for buyer/third parties.

Kaise Poochha Jaata Hai:

Long essay: examine the statement and explain whether there are exceptions; list and explain exceptions with examples.

Repeat Pattern:

Appears as a detailed long question in Paper 4; expect examiners to look for statutory exceptions and illustrative examples.

37. Consideration: Definition and when consideration is unlawful

Low Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What is consideration? When the consideration is unlawful?' exact pairing in Paper 3
- Definition of consideration (quid pro quo) as expected in short answers
- Grounds for unlawful consideration: illegal acts, immoral acts, consideration forbidden by law
- Examples where consideration is void/unenforceable (from question framing)

Kaise Poochha Jaata Hai:

Short-answer 3-mark style: definition plus list of conditions/examples when consideration is unlawful.

Repeat Pattern:

Only appears in Paper 3 explicitly — low repeat (Low confidence).

38. Exceptions to Seller's Title Rule: 'No seller can give better title' and its exceptions

Low Conf.

Low Priority

Appeared in: Paper 4 · 1× total

Question types: Long: 1

Kya Padhna Hai:

- Exact wording: 'No Seller of goods can give the buyer of goods a better title to those goods than what he himself Possesses.' Examine the statement and mention whether there are any exceptions to this rule. (Paper 4)
- Statutory exceptions: sale by a person in possession under voidable title, estoppel, sale under the authority of the owner, sale by a mercantile agent
- Case examples or fact patterns that qualify under each exception (expected in long answer)
- Effects on buyer's remedies when exception applies

Kaise Poochha Jaata Hai:

Long-essay: examine statement, list and explain exceptions with examples and legal consequences.

Repeat Pattern:

Only appears in Paper 4 as a long question — low repeat (Low confidence).

39. Promissory Note: Definition and parties to promissory note

Low Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What is 'Promissory Note'? Describe parties to promissory note.' exact phrasing (Paper 3)
- Definition as unconditional promise to pay, maker and payee roles
- Distinguish promissory note from bill/cheque in parties and acceptance
- Examples of parties and sample phrasing in a promissory note

Kaise Poochha Jaata Hai:

Short-answer: define and list/describe parties with brief role explanation.

Repeat Pattern:

Only seen in Paper 3 — low repeat (Low confidence).

40. Contract of Indemnity: Definition and important features

Low Conf.

Low Priority

Appeared in: Paper 4 · 1× total

Question types: Short: 0-1 | Long: 1

Kya Padhna Hai:

- 'What is Contract of Indemnity? What are its important features?' (Paper 4)
- Definition: contract to save the promisee from loss caused to him by the conduct of promisor or by the conduct of any other person
- Distinguish indemnity vs guarantee (features comparison)
- Rights of indemnitee and scope of indemnity (expected in explanation)

Kaise Poochha Jaata Hai:

Longish short-answer: define and list features with brief comparisons to guarantee.

Repeat Pattern:

Only in Paper 4 — low repeat (Low confidence).

41. Rights of Unpaid Seller: Definition and his rights under Sale of Goods Act

Low Conf.

Low Priority

Appeared in: Paper 4 · 1× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'Define an unpaid seller. What are his rights?' exact wording from Paper 4
- Rights: lien, stoppage in transit, resale, sue for price
- Conditions for exercising each right (payment default, insolvency) as expected in answer
- Remedies and procedural steps for enforcement of rights

Kaise Poochha Jaata Hai:

Short/long: definition then pointwise rights with legal conditions and examples.

Repeat Pattern:

Asked as a standalone in Paper 4 only — low repeat (Low confidence).

42. Finder of Goods: Rights of finder of goods

Low Conf.

Low Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What are the rights of finder of goods?' exact phrasing from Paper 2
- Rights: right to retain until owner found, duty to take care, possible action against wrongdoer
- Distinction between finder and true owner, effect of reward or lawful possession
- Short scenarios where finder can sell or must handover (as expected in a 7.5-mark answer)

Kaise Poochha Jaata Hai:

Short-answer enumerative format: list rights and brief explanations with examples.

Repeat Pattern:

Only in Paper 2 — low repeat (Low confidence).

43. Breach of Contract: Meaning and remedies

Low Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Question types: Short: 0-1 | Long: 1

Kya Padhna Hai:

- 'What is meant by 'breach of contract'? What are the remedies against breach of contract? Explain those.' (Paper 3)
- Types of breach: actual, anticipatory
- Remedies: damages (compensatory, punitive where applicable), specific performance, injunction, rescission
- Calculation/measure of damages (expect brief mention in remedy explanation)

Kaise Poochha Jaata Hai:

Long-answer requirement asking definition followed by detailed remedies and legal tests.

Repeat Pattern:

Only asked in Paper 3 as a long Q — low repeat (Low confidence).

44. Caveat Emptor: Principle and Exceptions

Low Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What do you understand by 'Caveat Emptor'? Explain the exceptions to this principle.' (Paper 3)
- Principle: buyer beware and its legal meaning in sale of goods
- Key exceptions: fraud, misrepresentation, sale by sample, sale by description, implied condition as to title
- Small examples to illustrate each exception expected in answer

Kaise Poochha Jaata Hai:

Short-answer: give definition then enumerate and explain exceptions concisely.

Repeat Pattern:

Only appears in Paper 3 — low repeat (Low confidence).

45. Consideration: when unlawful

Medium Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Kya Padhna Hai:

- Define consideration and list circumstances when consideration is unlawful: consideration forbidden by law, involves illegal acts, or is immoral.
- Provide short examples tying back to statutory provisions or illustrative scenarios.

Kaise Poochha Jaata Hai:

Short 3-mark question: definition + list of unlawful considerations with brief explanation.

Repeat Pattern:

Appears explicitly in Paper 3; short concise answers suffice.

46. Promissory Note: parties

Medium Conf.

Low Priority

Appeared in: Paper 3 · 1× total

Kya Padhna Hai:

- Define promissory note as unconditional promise to pay and identify parties: maker and payee.
- Distinguish parties and roles versus bill of exchange/cheque.
- Prepare a short example form of a promissory note showing parties.

Kaise Poochha Jaata Hai:

Short-answer: 'What is Promissory Note? Describe parties to promissory note.' Expect definition and names/roles of parties.

Repeat Pattern:

Asked in Paper 3; short concise answer appropriate.

Related Topic Pairs

Yeh topics exam mein aksar ek saath poochhe jaate hain — inhe milake padho.

1. Condition vs Warranty <-> Implied Conditions in Contract of Sale: these two are frequently paired (same question asks distinction then enumerates implied conditions).

2. Pledge vs Bailment <-> Bailment: pledge definitions and bailment elements are often tested together as comparative questions.

3. LLP: Definition/Eligibility/Relationship <-> LLP: Procedure for Incorporation — conceptual and procedural LLP questions appear in same exam cycles.

Apni Strategy Chuno

Pick your goal — here's exactly which topics to study based on past paper patterns.

□ *Bas Pass Hona Hai*

Just want to pass — 18 of 46 topics · ~57% marks coverage

1. Limited Liability Partnership (LLP): Definition, Eligibility to be Partner & Relationship of Partners
2. LLP: Eligibility & Relationship of Partners
3. LLP: Explain & eligibility to be partner & relationship
4. Contract: 'Contract is an agreement enforceable at law' — definition & essentials of valid contract
5. Acceptance: How acceptance is made (forms) and revocation rules/time limits
6. Void Contract: Meaning and reasons for a contract being void
7. Quasi Contract: Definition & salient features
8. Contingent Contract: Definition and rules of enforcement
9. Contract of Sale: Definition and main characteristics under Sale of Goods Act
10. Condition vs Warranty: Distinguish and list implied conditions in sale of goods
11. Cheque: Definition and differentiation from Bill of Exchange
12. Void Contract: Reasons and examples
13. Quasi Contract: Salient features
14. Contract of Sale: Main characteristics
15. Contingent Contract: Enforcement rules
16. Condition vs Warranty: Implied conditions
17. Contract: essential elements
18. Acceptance: revocation & time limit

□ Average Score Chahiye

Decent score — 36 of 46 topics · ~90% marks coverage

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14. Contract of Sale: Main characteristics
15. Contingent Contract: Enforcement rules
16. Condition vs Warranty: Implied conditions
17. Contract: essential elements
18. Acceptance: revocation & time limit
19. Offer: What is an offer and how an offer is made
20. Bailment: Definition and essential elements of contract of bailment
21. Pledge vs Bailment: Define pledge and differences from bailment
22. Goods under Sale of Goods Act 1930: Definition and classification
23. Implied Conditions in Contract of Sale of Goods (specific list: title, merchantable quality, fitness, sale by sample)
24. LLP: Procedure for Incorporation
25. Negotiable Instruments: Definition and characteristics
26. Holder in Due Course: Rights of a holder in due course of negotiable instrument
27. Contract of Guarantee: Definition and example
28. Bailment: Define and essential elements
29. Contract of Guarantee: definition & example
30. Offer: How an offer is made
31. Bailment: essential elements
32. Negotiable Instrument: characteristics
33. Indian Contract Act: scope and adequacy
34. Contract of Indemnity: important features
35. Unpaid Seller: definition & rights
36. Exceptions to rule: seller cannot give better title

▣ Top Karna Hai

Full coverage — all 46 topics · 100% marks coverage

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36. Exceptions to rule: seller cannot give better title
37. Consideration: Definition and when consideration is unlawful
38. Exceptions to Seller's Title Rule: 'No seller can give better title' and its exceptions
39. Promissory Note: Definition and parties to promissory note
40. Contract of Indemnity: Definition and important features
41. Rights of Unpaid Seller: Definition and his rights under Sale of Goods Act
42. Finder of Goods: Rights of finder of goods
43. Breach of Contract: Meaning and remedies
44. Caveat Emptor: Principle and Exceptions
45. Consideration: when unlawful
46. Promissory Note: parties

Overall Exam Strategy

Bas Pass Hona Hai: focus on the exact definitions and pointwise lists (offer/acceptance/consideration/void vs voidable/quasi/contingent contracts, sale-of-goods implied conditions, LLP eligibility/relationship, negotiable instruments). Memorise 4–6 crisp points for each short-answer topic and prepare one expanded template answer for each long question.